

Constitution of India, Philosophy and

NAME :

DATE : / /

Unit 1 : Introduction

- ① Meaning, nature and importance of constitution
- ② Indian constitutional development.
- ③ Constituent assembly making of Indian constitution and role of Dr. B.R. Ambedkar.

Unit 2 : Constitutional Philosophy & Its values.

- ① Preamble.
- ② Citizenship
- ③ Features of Indian constitution.

Unit 3 : Constitutional Rights & Duties.

- ① Fundamental Rights.
- ② Fundamental Duties.
- ③ Directive Principles of state policy

Unit - 1

Constitution - Meaning, nature, importance

I Meaning :-

Defⁿ:- Constitution means to form or to establish. It means the formation or establishment of the fundamental law which determines the political structure of the state.

constitution

↓ derived from

Latin word 'constitute'

↓

To form / compose / establish
(It is an act of establishment of government)

From the above defⁿ it is clear that constitution is the ^{P.V.} fundamental law of the land which establishes the main organs of the state that is the

① Legislature ② The executive ③ Judiciary
defines their powers demarkates their responsibilities & regulate their relationships with one another. defines the powers of the central & the state govt and also regulates the relation b/w the people and the state by listing the rights & duties

makes laws

carry out law

settle disputes & give justice

of the citizens.

1/10/24

II Nature and importance of constitution

Nature / characteristics of constitution

- ① Type of Political structure :- Democracy / Socialism / Communism
- ② Type of Government → Parliamentary / Presidential
- ③ Type of State structure → Federal / Unitary
→ India follow both, Switzerland - unitary

Lengthy, written constitution → Indian

(flexible constitution)

P.V. Nature of the constitution.

The characteristic features of our constitution are as follows

- ① The constitution determines the political system of the country such as democracy, socialism etc.
- ② The constitution determines the structure of the state that is unitary or federal
- ③ The constitution determines the form of government that is parliamentary or presidential

- P-10
- ④ The constitution establishes the main organs of the state that is the legislature, the executive and the judiciary. defines their powers, responsibilities and ~~the~~ regulate their relationships with one another.
 - ⑤ Constitution contains the laws which govern the distribution of powers between the center and the state.
 - ⑥ Constitution of our country may be written that is systematically documented or may be unwritten.
 - ⑦ The constitution may be detailed or brief.
 - ⑧ The constitution may be rigid or flexible.

I Importance of Constitution!

- ① It is essential for the operations of the any state. constitution guides the way to go on and achieve the social & economical stability.
- ② It makes the government responsible. It is a law under which a government should operate.
- ③ It states the fundamental rights of people and makes the government responsible to

- see whether people enjoy their rights.
- ④ It provides aims and objectives of any nation. There is no state without any social and economical objectives.
- ⑤ It works as an instrument of change. It helps in reforming the goals of the society.

II Indian constitutional development

1947 - The Mountbatten mission.

C. 34
governor general. → representative of British king
director - east India company

1857. → 1st time Indian war of Independence

1858 → Indian act.

Secretary of India → another person, member of British cabinet.

he & Vice Roy control India.

along with 15 members

Indian Council Act - 1861

1861 - Indians entered legislature as non official member

1858 government of India act.

↓
1861 Indian council act. 1861

(non official member)

↓
1892.

(indirect election) [representative chosen by british]
(debate on budget)

↓
1909

(direct election) (communal representation)

Indian council act of 1909

morley minto. reform, allowed in executive council.

↓
~~1919~~ 1919

government of

India act ~~1919~~ 1919

4/10/24

1858 - 1947 (Kings rule).

government of India Act - 1858

Rule of EIC (East India company) (removed perma. ^{remy})

+ Dual govern. (Diarchy) Bicameralism.

① transferred list.

②

- extended communal representation
to remaining region

↓
1935

govn of India act 1935

crisp mission
cabinet "

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III Indian Constitutional development.

The period of Historical british constitutional experiments in India can be divided into two ~~part~~ phase

phase ① constitutional experiment during the rule of east India company.

② (1773-1857)

phase 2 - constitutional experiments under the british crown / king (1857-1947)

phase 2 constitutional development rule under british crown.

① Government of India Act of 1858

- This act was passed by british parliament brought an end to the rule of East India company. the powers were transferred to the british crown.
- The Secretary of state for India was given the powers & duties of the former part of directors. He controlled the Indian administration to the vice Roy of India.

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4/10/24

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Rule of EIC (East India company) (removed power + equal govt. (Parliamentary) Bismarckism.

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chips mission
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Phase & constitutional development - rule under british crown.

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- The secretary of state for India was given the powers & duties of the former post of directors. He controlled the Indian administration to the Viceroy of India.

- The secretary of state for India was associated, by the council of India consisting of 15 members which acted like an advisory ^{british} code.
- governor general of India was made the Viceroy of India.

② Indian council act of 1861

- Indians were nominated as non-official members for the first time in the legislative council of viceroy.
- legislative council were established in provinces and center.
- In

③ Indian council act of 1892

- The legislative council was given more power they ~~had~~ had the power to clear on the budget & ask question to the executive.
- Indirect election was introduced for the first time.
- Indian council

④ Indian Council act 1909

- This act is also called as Morley-Minto reform.
- For the first time direct elections were introduced for the legislative council.
- The central legislative council was renamed as Imperial legislative council.
- Communal representation was introduced. It was a system where seats were reserved only for Muslims and only Muslim could be vote.
- For the first time Indian's were appointed to the executive council of Viceroy.

⑤ Government of India act 1919

- This act is also called as Montagu-Chelmsford reform.
- Bismaralism was introduced for the first time.
- Dyarchy (Dual governance) was introduced in the provincial subjects. It was divided into Reserved & Transfer.

• The transferred list included agricultural, health, education, and supervision of local government.

- The reserved list included communication, foreign affairs, defence, and ^{local} under the control of Viceroy.
- Out of 6 members in Viceroy Executive Council 3 of them were Indians.
- Public Service Commission was established for the first time.

⑥ Government of India act of 1935

- This was the longest and the last constituted and measure introduced by British India. It was the result of multiple round table conference & a report by the Syme Commission.
- Bismaralism was introduced in 6 provinces, out of 11 provinces.
- As per the act the powers were divided into federalist, provincial list and ^{state} concurrent list.
- Provincial autonomy was introduced in

- the provinces by removing oligarchy
- Provided provisions for establishing federal court, reserve bank of India

Cripps mission - 1942

- Dominion status could be given to India after second world war.
- Once the second world war ends an elected body could be set up in India for framing of Indian constitution.
- Almost all parties & sections in India rejected the proposals given by the Cripps mission

Cabinet mission - 1946

- Indian states & the British provinces would combine to form union of India.
- A constituent assembly should be established consisting of 389 members
- 14 members from major political parties would form an ~~interim~~ interim government
- A representative body would be formed as the constituent assembly.

- until the constn was framed India would be administered as per the government of India Act 1935.

The Mount Batten Plan / Indian Independence Act of 1947

- The British India was partitioned into India & Pakistan with effect from 15 aug 1947.
- ~~The~~ They complete legislative authority to the constituent assembly
- Establish government in both provinces & states.

Top

Cabinet Mission

↓ direct election

Member of provincial legislative assembly

↓ indirect election

Members of constituent assembly (1946)

389 (original membership) → 299 → Provincial Aug
93 - princely states

↓

Dr. Rajendra Prasad (President)

Dr. B.R. Ambedkar (Chairman)

1st election 9th Dec 1946 P.V.9

↓ Partition

299 (final membership)

↓

Drafting committee

↓

29th August 1947

↓

7 members including chairman,

↓

1st draft Feb 1948

↓ Dr. B.R. Ambedkar

2 years, 11 months 18 days for completion, P.V.9

↓ Dr. B.R. Ambedkar

↓

26th Nov 1949 (complete) → actual 284 members

↓

26th Jan 1950 (adopted)

Constituent Assembly

• The constituent assembly is a body composed of the purpose of drafting or adopting or constituting

• The members of the constituent assembly of India were chosen by indirect election by the

members of the provincial legislative assemblies which was according to the recommendation of

the cabinet mission.

• The cabinet mission stated that there should be

292 members 1st part to provisional legislative assembly, 93 members represented

Indian princely states 84 members

represented chief commissioner provinces

thus the total membership was 389

• Dr. Rajendra Prasad became the president

Dr. B.R. Ambedkar was appointed as

chairman.

• The constituent assembly that had been

elected for undivided India held its

0.11.19

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first meeting on 9th december 1946.

- As a result of the partition under the plan of June 3, 1947. a separate constituent assembly was setup for Pakistan.
- The representatives of Bengal, Punjab, Sindh, non western frontier province Baluchistan, and the Sylhet & Assam opposed to be the members of constituent Assembly of India. & There was a fresh election in the new province of west Bengal & East Punjab.
- As a result of the partition when the constituent assembly reassembled the membership of the house was reduced to 299.
- Of these 284 were actually present on 28th November 1949 and gave their signatures to the constitution for final period.

Indran constitution

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① cabinet mission plan.

- At the end of world war 2 the british government sent 3 of th ~~the~~ ministers to India for a solution to the question of India's independence.
- This ^{schim} ~~there~~ of minister was called cabinet mission.
- The cabinet mission made it clear that its objective was not to lay down the details of the constitution but to speedily start a process ^{wher} ~~there~~ by constituent would be frame by the Indians for the Indians.

② constituent assembly

③ Drafting Committee

- On 29th August 1947 a drafting committee under the chairmanship of Dr. B.R. Ambedkar was formed by the constituent assembly.
- The drafting committee had 7 members including the chairman B.R. Ambedkar.
- The first draft was prepared by B.N. Rau and was ready by Feb 1948.
- The constituent assembly discuss the draft and took 2 years 11 months & 18 days finally pass the constitution.

④ Commencement of the constitution of India

• Some of the provisions of the constitution of India, especially those relating to citizens, P. was immediately put into force, to enable the displaced persons from Pakistan to register themselves as the citizens of India.

• The constitution as the whole however came into force only with effect from 26th Jan 1950 This is the date of the commencement of Indian constitution.

Content of the Indian constitution.

• The constitution of India as originally adopted had 22 parts 395 articles & 9 schedules

• At present the Indian constitution is divided into 25 parts & 12 schedules

Sources of Indian constitution

Source	Source of Indian constitution	Source
Art 1 Provision / Law		

① Basic structure of our political system, provisions of regulating the union state relation, declaration of emergency

Government of India Act of 1935.

② concept of directive principle

Irish constitution

P.V.V.

③ Parliamentary system

P.V.V. with ministers responsible to the legislature and the provisions relating to the issue of writs.

British constitution

④ Fundamental Rights

P.V.V. Preamble inspired by US constitution.

⑤ Fundamental duties

Russian constitution.

सर्वोच्च न्यायालय - भारत

⑥ The federal structure and the provisions related to union state relation, distribution of powers b/w union & state.	Canadian constitution
⑦ Emergency provision	German constitution
⑧ Provisions making the president the creative head of the state and the supreme commander of the arm force & the provisions meeting making the vice president ex-official chairman of the council of state	US constitution

III. Role of Dr. BR Ambedkar

He said article 28 is the soul of Indian constitution.
DATE 18/10/24

On August 29, 1947, Dr. Ambedkar was appointed the chairman of the drafting committee. That was constituted by constituent assembly to draft a constitution for independent India. The major contributions are

① Fundamental rights - Ambedkar was a champion of fundamental rights and part-3 of the Indian constitution guarantees the fundamental rights to the citizens against the state.

② Parliamentary democracy - He firmly believe that the parliamentary system of government alone can bring the quality in society through the application of the principles of social democracy. The preamble of the Indian constitution highlights the principles of parliamentary democracy

③ protective discrimination / reservation - The real contribution of Ambedkar is reflected in the protective discrimination scheme of the reservation policy of the govern

ment under the provisions of part-3 & many of part-4, dealing with the constitutional model to the condition of ~~the~~ the schedule with Sc, schedules tribus/st and other backward class OBC.

④ State socialism

The proposed state ownership of agriculture with a collectivised method of cultivation on a and magnified modified form of state socialism in the field of industry.

Unit-2

Constitutional Philosophy and its

Values

I Preamble.

The Preamble of the Indian constitution is as follows.

“We, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a SOVEREIGN, SOCIALIST SECULAR DEMOCRATIC REPUBLIC and to secure to all its citizens

① JUSTICE, social, economic and political, LIBERTY of thought, expression, belief, faith and worship, EQUALITY of status and opportunity and to promote among them all FRATERNITY assuring the dignity of individual and unity and integrity of the nation.

IN OUR CONSTITUTION ASSEMBLY, this 26 day of November, 1949, DO HEREBY ADOPT AND GIVE

TO OURSELVES THIS CONSTITUTION"

Elements of Preamble.

① **SOVEREIGN** → no body control us / independent

any control which is sovereignty then only they can have constitution

Part two

② **SOCIALIST** → (minimise) the gap b/w rich & poor

③ **SECULAR** → not support any religion, No national religion

④ **DEMOCRATIC** → By the people, of the people for the people

⑤ **REPUBLIC** → no hereditary ruler

⑥ **JUSTICE**

Political Economic Social

↓
his discrimination on the basis of caste, religion, sex, etc.

⑦ **LIBERTY** → kind of freedom / no unwanted restriction

↓ on thought, faith worship.

⑧ **EQUALITY** → all are equal.

⑨ **FRATERNITY** → all the religions together with the feeling of brotherhood.

Notes

Every written constitution begins with Preamble.

Purpose of the Preamble

① It indicates the source of the constitution

② It states the basic objective sought to be achieved by the constitution

③ It indicates the nature of state the constitution seeks to establish.

Elements of the Preamble

① **SOVEREIGNTY**

It means absolute independence that is a government which is not controlled by any other power internal or external

③ SOCIALIST

- In 1976, the 42nd amendment to the constitution incorporated socialist & secular in the preamble.
- The word socialism has been used in the context of economic planning.
- It signifies major role in the economy.
- It also means commitment to attain ideas like removal of inequality, provision of minimum basic necessity to all equal pay for equal work.

③ SECULARISM

- India is neither religious nor irreligious or anti-religious. It implies that in India there will be no state religion. The state will not support any particular religion out of public fund.
- This has two implications:
 - ① Every individual is free to believe in and practice any religion he/she belongs to.
 - ② State will not discriminate against any individual or group on the basis of religion.

④ DEMOCRATIC

- The last line of the preamble says hereby adopt, enact and give to ourselves this constitution.
- According to the last line democracy is generally known as government of the people by the people and for the people.
- It also means the government is elected by the people. It is responsible & accountable to the people.

⑤ REPUBLIC

- The preamble also declares India as Republic.
- It means that the head of the state is the president who is indirectly elected and he is not a hereditary ruler as in the case of British monarch.

⑥ JUSTICE

- Political Justice: This means that every 5 years the members of the legislature of the union and of each state shall be elected by the vote of entire adult population.

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• According to the principle one man one vote

→ (2) Economic Justice

• It means no discrimination between men & women on the basis of income, wealth and economic status. It stands for equitable distribution of wealth the end of monopolistic control over means of production and distribution, decentralisation of economic resources and the securing of adequate opportunities to all for on training.

→ (3) Social Justice

It means the absence of socially privileged classes in the society and no discrimination against any citizen on the basis of cast, colour, religion gender all place of birth India stands for eliminating all forms of exploitation from society

(4) LIBERTY

It signifies not only the absence of any unwanted restrictions on the freedom of individual actions but

also the creation of conditions which provide essential ingredients constituted of individuals social progress depends on the progress of the individual.

(5) EQUALITY

Each individual is assured of equality of status and opportunity for the development of the but in him and the means for the enforcement of the rights guaranteed to him

(6) FRATERNITY

Spirit of Brotherhood among all sections of the people a feeling that they are all children of the same soil the same motherland.

III CITIZENSHIP

works with
part IV of
constitution

C.W

legal relationship.

Person

state/country.

gives loyalty

gives protection.

legal relationship b/w person & country where
in person gives loyalty and country gives protection.

29/10/24.

Notes:

Citizenship is defined as the legal relationship between an individual and the state under which the individual pledges his loyalty to the state and the state offers protection to the individual.

- Citizenship is confined only to natural or physical persons.
 - It is not extended to corporations and juristic persons.
 - There are two kinds of citizenship they are
- ① Single citizenship
 - ② Dual citizenship.

① Single citizenship: It means that a citizen of a country has a single or only one citizenship, per the entire country, example India.

② Dual citizenship: It means that a citizen of a country has 2 citizenship that is (i) Federal citizenship (citizenship of the union) (ii) State citizenship (citizenship of the state) ex: USA & Switzerland.

Significance of Citizenship.

- ① Citizenship determines the relationship b/w the state and the citizen.
- ② Citizenship signifies power & membership of an individual to the country that is true citizenship. ~~the citizen~~
- ③ A citizen expresses loyalty to the nation, in return the nation provides protection to the citizens.
- ④ Citizenship trans to a person The right to vote and the right to contest in the elections through the legislation in other words citizenship provides to a person

NAME: _____
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opportunities to participate in politics.

- ⑤ citizenship provides certain special rights that is fundamental rights to a person
- ⑥ citizenship gives to a person the right to contest the elections for the office of the president or vice president of the country.

citizenship at the commencement of the constitution.

- ① Who are born in the territory of India
- ② Either of whose parents first born in the territory of India.
- ③ Who had been ordinarily residing in the territory of India for not less than 5 years after the commencement of constitution of India.

~~IMP.~~
citizenship act of 1955:

The act made provisions for acquisition & termination of citizenship.

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acquisition of citizenship

Under the act of 1955 Indian citizenship may be ~~acquired~~ by

- ① Birth
- ② Descent $\rightarrow$ grandparents.
- ③ Registration
- ④ naturalisation $\rightarrow$ non Indian become
- ⑤ Incorporation of territory

laws of Indian citizenship. Termination

The citizen of a person may terminate

- ① By giving up of citizenship.
- ② To voluntary through voluntary acquisition of citizenship of the other country.
- ③ Through deprivation of citizenship by order of the government. $\rightarrow$ rare away
- ④ A woman loses her citizenship by marrying a foreigner
- ⑤ A person loses citizenship if he/she remains absent for a long period from the native state.

III. Features of Indian Constitution.

→ ① Longest written constitution, orig.

It consist of 395 articles, 18 schedules and 87 amendments. (200th party originally)

The reason for the lengthy characters are

- (i) The framers of the constitution not only laid down fundamental principles of the government but provided matters of administrative details.
- (ii) It provides rules for the administration for both center & states.
- (iii) There are separate chapters about fundamental rights & directive principles of state policies.
- (iv) another reason for bulky character is it has direct with problems of scheduled (caste) scheduled tribe (ST), regional & linguistic etc.

→ ② Preamble

① It indicates the source of the constitution and aims & objective of the constitution.

② It also points out the nature of the state.

③ It is supposed to indicate its content.

④ It says that India should be a sovereign socialist, secular, democratic & republic state. It ensures to all its people justice, liberty, equality and fraternity.

→ ③ A sovereign, socialist, secular, democratic republic

(i) Sovereign: India has emerged as an independent state.

(ii) Formation of internal & external politics India will be guided by a national interest and not by external pressure.

(iii) Socialist / Socialism: means Removal of socio-economic imbalance providing a massive justice.

(iv) Secular / Secularism - all religions in

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the country however small in their strength have the same status and same prestige and support from the state.

There will be freedom of liberty of faith & worship.

(iv) Democratic

It signifies that the real power comes from the people constitution introduced universal adult franchise (right to vote)

ultimate sovereignty best with the people who are the masters of the nations destiny

(v) Republic

The Constitution has made India a republic

The head of the state that is the president is elected indirectly by the people

It does not provide place to a king or a monarch to rule India,

→ 4

④ Establishment of Federal Polity

Article - 1 of the constitution of India says "India that is Bharat shall be union of states."

Through the word federation is not used the government is federal a state is federal when

① There are two sets of a government

② There is distribution of power between the two

③ There is a written constitution which is 'The Supreme law of the land'

④ There is an independent judiciary to interpret the constitution and settle dispute between the center and the state.

⑤ All these features are present in India, but in spite of all this essential

features of our federation Indian constitution has an unitary tendency

⑥ There is also single integrated judiciary for the whole country

⑦ All India services (Indian administrative service, Indian police service and Indian forest service) proof another unitary feature.

→ (5) Fundamental Rights.

The constitution of India provides the basic principle that every individual is entitled to enjoy certain basic rights, and part III of the constitution deals with these rights which are known as fundamental rights.

Originally there were 7 categories of rights but now they are 6 in number.

They are:-

- (1) Right to Equality (14-18)
- (2) Right to Freedom
- (3) Right against exploitation
- (4) Right to freedom of religion
- (5) Cultural and Educational Rights.
- (6) Right to constitutional Remedies.

^{most by court.} Right to property originally a fundamental right has been removed by 44 amendment 1978 it is now a legal right.

→ (6) Directive principles of the state.

Policy

(1) These principles are in the nature of directives to the government to implement them for establishing social and economic democracy in the country. It includes important principles like

- (1) Adequate means of livelihood.
- (2) Equal pay for both men & women
- (3) Distribution of wealth so as to provide the commonhood free and compulsory

primary education.

- (4) Right to work
- (5) Public assistance in case of old age, unemployment, sickness, disability, etc.

- (6) The organisation of village Panchayat
- (7) Special care to the economically backward class of the people.

⑦ Partly Rigid and Partly Flexible

① The constitution of India is neither purely rigid nor purely flexible

② Some parts of the constitution can be amended by the ordinary law

③ Such provisions can be amended only when a bill for that purpose is passed in each of the houses of parliament by a majority of ~~to~~ a total membership of that house and by a majority of not less than $\frac{2}{3}$ rd of ~~the~~ members of that house present and voting

⑧ Fundamental Duties

① A new part IV (A) after the directive principle of a state policy was incorporated in the constitution by the 42nd amendment 1976 for fundamental duties

② The purpose of incorporating these duties in the constitution is just to remind the people that as they are enjoying their rights as citizens they

should also perform duties & rightly as the rights & duties are co-related

⑨ Secular state

① India is a secular state because it makes no discrimination b/w individuals on the basis of religion.

② It neither encourages nor discourages any religion.

③ On the contrary right to freedom of religion is ensured in the constitution and people belonging to any religious group have the right to practice and propagate any religion they like.

⑩ Independent Judiciary

① The judiciary occupies an important place in our constitution and is also made independent of the legislative and executive

② The supreme court of India stands at the tip of integrated judicial system.

Features of Indian Constitution

Features of Indian Constitution

① Longest constitution → explained in detail to avoid misunderstanding

② Preamble → begins with Preamble Summary

③ Sovereign, Secular, Socialist Democratic Republic

real independence
(absolute independence)

no religion

equal pay
for equal work

Providing
basic structure.

reducing gap
between rich & poor

no rule
of king or queen

government
of the people
by the people
for the people

head of state

India's Union of states

Central

State

Distribution of power

① power concentrated on centre
→ Supreme Court.

② → Public service exam

③ → Emergency condition

Dispute b/w centre & state
solved by → Supreme Court.

③ → written constitution

③ It acts as a protector of fundamental rights and guardian of the constitution
④ If any law passed by the legislature or action taken by the executive contradicts the provision of the constitution, they can be declared as the null and void by the Supreme Court. Thus it has the power of Judicial review.

11 Single Citizenship

① The constitution of India recognises only single citizenship.

② In India we are the citizens of India only and not of the respective states to which we belong

③ This provision would help in promoting unity and integrity of the nation.

dispute bias center

[5] Fundamental Rights

- ① Right to freedom
- ② Right to equality
- ③ Right against exploitation
- ④ Right to freedom of religion
- ⑤ Right to constitutional remedy ^{part & soul of constitution}
- ⑥ cultural and educational rights

① initially
② rights now

[6] Fundamental Duties

⑦ Secular state (all religions are equal)

⑧ Directive Principle of State Policy ^{give direction to government}

⑨ Independent Judiciary

→ power to supreme court given by constitution

⑩ Partly rigid & partly flexible

USA fully rigid
Britain fully flexible

[11] Single Citizenship

USA & Switzerland - dual citizenship.

not separate for state citizenship.

Unit 3 CONSTITUTIONAL RIGHTS AND DUTIES

[I] FUNDAMENTAL RIGHTS

Political democracy

Fundamental Rights are the basic rights conferred on the citizen by the constitution of the country and which are essential for a man to lead a decent and the most respectable life and to attain the fullest development of his human personality

Significance of fundamental rights

① The fundamental rights are checked on the architecture action fundamental actions of the state.

② Fundamental rights made the life of the people meaningful.

③ The existence of oppressed people in our country is dangerous to nation peace. The removal of oppressed people entity is possible only through the enforcement of fundamental rights

④ Fundamental rights of citizens are absolutely essential for the functioning of democracy. i.e. If freedom of expression (which includes freedom of speech & freedom of press) is

denied st deprives the people of the right to criticize and change their government which is absolutely necessary for the proper working of democracy

* Part III (Article 12 to 35) deals the fundamental right granted to individual

Classification of Fundamental Rights.

The fundamental rights incorporated in part III of the constitution of India as mandated are classified under 6 main categories they are:-

- ① Right to equality [Article 14-18]
- ② Right to freedom [Article 19-22]
- ③ Right against exploitation [Article 23-24]
- ④ Right to freedom of religion [Article 25-28]
- ⑤ The cultural & educational rights [Article 29-30]

* ⑥ Right to constitutional [Article 32-45] remedies

Article 31 to 35 is a Right to property removed by 44th Amendment, 1978 now property is not a fundamental right

exception - Reservation

→ ① Right to equality (Article 14-18)

Right to equality means equality in law its means that is legal civil and social various rights included in right to equality are

- ① Equality before law (Article 14)
- ② Prohibition of discrimination (Article 15)
- ③ Equal opportunity (Article 16)
- ④ Abolition of untouchability (Article 17)
- ⑤ Abolition of Titles (Article 18)
- ⑥ The right

→ ② Right to Freedom (Article 19-22)

Protection of certain rights and of life and personal liberty and against arrest and detention

Article 19 of our constitution as mandated guarantees 6 basic and valuable freedom to the citizens of India they are

- ① Freedom of speech and expression,
- ② Freedom to assemble peacefully and without harm
- ③ Freedom to form association and unions
- ④ Freedom to move freely throughout the territory of India,

→ ⑤ Freedom to visit and settle in any part of the territory of India.

⑥ Freedom to practice any profession or carry on any occupation-trade or business.

P.V.G Besides these 6 freedoms, Article 20, 21, 22 of our constitution guarantee's protection in respect of conviction for offences, protection of life and personal liberty, protection against arrest and detention.

→ ③ Right Against Exploitation (Article 23-24)
Exploitation means misuse of the services of someone by force or tradition.

Right against exploitation puts a ban on → ① Trafficking human beings and all forms of force labour (Article 23)

→ ② Employment of children below the age of 14 years in hazardous (dangerous) operations (Article 24)

③ Right

→ ④ Right to freedom of Religion

The concept of secularism as embodied (encompassed) in our constitution suggest

① There is no state religion

② There is equal respect and protection for all religions

③ No one is to be discriminated against on the basis of religion

④ Everyone is guaranteed full and equal freedom of religion

⑤ Right to freedom of religion includes

⑥ Freedom to manage religious affairs

Freedom as to payment of taxes for promotion of any particular religion

⑦ Freedom as to attendance at religious instructions in certain educational institutions.

⑧ Freedom of conscience and Religion

→ (5) Right to Constitutional remedies

Most important article - 'Soul of the Constitution'

'Heart of the Constitution'

The fundamental rights are bound to be ~~less~~ ^{of} less significance if they are not safeguarded by constitutional remedies. That is why there is no collective constitutional omissionary for the enforcement of the fundamental rights. Hence the framers of our constitution have made special provisions under Article 32 for the enforcement of fundamental rights. Article 32 of the constitution guarantees the right to move to highest ~~court~~ ^{court} of the land that is the Supreme Court directly by appropriate proceedings for the enforcement of fundamental rights.

→ (6) Cultural and Educational Rights

* Article 29(1) of the constitution of India

guarantees to every section of the citizens residing anywhere in India and having distinct language, script or culture, the right to preserve their language script or culture

^{for minorities} As per Article 29(1) minorities also have the right to preserve their language script or culture

* Article 29(2) of the constitution provides

that no citizens can be denied admission to any educational institution maintained or aided by the state on the basis of any religion, race, caste or language minority. Article 29(2) guarantees even to

* Minorities is the right of admission into

any educational institution maintained or aided by the state or aided by the state Article 30(1) of the constitution

says that all minorities whether based

on religion or language have the right to establish and administer educational

^{For minorities} institution of their choice

- Article 30(2) of the constitution provides that the state shall not discriminate against any minority educational institution in the matter of grant in aid from state fund.

FUNDAMENTAL DUTIES

51A Fundamental Duties (Total 11 duties)

* Rights and duties are correlated
 * Fundamental duties are there for intended to serve as the constant reminder to every citizen that while the constitution specifically comport on them certain fundamental rights it also requires citizens to observe certain basic norms (rules) of democratic conduct and democratic behaviour

Sources of Fundamental Duties

- ① We have made a 'fundamental duty' on the lines of the 'Chapter on the citizens duties of the Soviet Union/Russia country
- ② on the Recommendation of Swaran Singh Committee.

The Indian constitution includes the fundamental duties in the constitution through the 42nd amendment act in 1976

Fundamental included in Article 51A

- ① To abide the constitution and respect its ideals and institutions the national flag & national anthem
- ② To cherish and follow the noble ideals which inspired our national struggle for freedom
- ③ To uphold and protect the sovereignty, unity and integrity of India.
- ④ To defend the country and give national service when called upon to do so.
- ⑤ To promote harmony & the spirit of common brotherhood among all the people of India transcending religious, linguistic, regional diversities, to renounce, practices, derogatory to the dignity of women.
- ⑥ To value and preserve the rich heritage of our composite culture.

- ⑦ To protect and include the natural environment including forest, lakes, rivers, & wild life and to have compassion for the living creature
- ⑧ To develop the scientific temper & humanism and the spirit of enquiry and reform
- ⑨ To safeguard public property and to avoid violence
- ⑩ To strive towards excellence in all spheres of individuals and collective activities so that the nation constantly rises to higher levels of achievements
- ⑪ Parents/guardians to provide opportunities for education to his/her child below the age of 6 years to 14 years

~~There were 10~~ There were 10 fundamental duties but in 1992, 26th Amendment Act added the 11th fundamental duty.

Significance of Fundamental Duties

- ① They serve as a reminder to the citizens that while enjoying their rights they should also keep the conscious of duties they owe to their country, their society & to their fellow citizens.
- ② They serve as warning against the anti-national and anti-social activities like burning the national flag, destroying public property and so on.
- ③ They serve as a source of inspiration for the citizens and promote a sense of discipline and commitment among them they create a feeling that the citizens are not just spectators but active participants in the realisation of national goals.
- ④ They help the court in ascertaining & determining 'constitutional validity' of a law. In 1992 the supreme court ruled that in determining the constitutionality of any law if a court finds that the law in question seeks to give effect to a

Fundamental duties if may consider such law to be reasonable in relation to article 14 (equality before law) or article 19 (6th freedoms) and they say a such laws from unconstitutionally. They are enforceable by law Hence the parliament can provide for the imposition of appropriate penalty or punishment for failure to fulfill any of them.

Constitutional Rights & Duties

Fundamental Rights

⇒ Source is constitution
⇒ 'Bv of Rights'
⇒ Part III → Indian constitution

Significance of

Fundamental rights ⇒ checks unwanted actions of government

② ⇒ Maintenance of international peace.

③ ⇒ Make the life of the people meaningful

④ ⇒ Remove oppressed people from society

⑤ ⇒ For proper working of democracy

Initially 7 Rights ⇒ Right to property, legal right, (4th right)

⇒ 6 Fundamental rights

⇒ (Act 19-18) ① Right to Equality

⇒ (Act 19-22) ② Right to Freedom

⇒ (Act 23-24) ③ Right against exploitation

⇒ (Act 25-28) ④ Right to freedom of Religion

⇒ (Act 29-30) ⑤ Cultural & Educational rights

⇒ (Act 32-45) ⑥ Right to constitutional remedy

* Heart & soul of the said by Ambedkar

① Right to Equality ⇒ equal before law (article 14-18)

⇒ ② prohibition of (article 15) discrimination

⇒ ③ equal opportunity (16)

⇒ ④ abolition / removal of (17) untouchability

⇒ ⑤ abolition / removal of (18) untouchability

⇒ ② Freedom of speech & expression (19-22)

⇒ ③ Form union (Students) workers, clubs (sports), Political party

⇒ ④ Assemble (public meeting, rallies, concerts) peacefully

⇒ ⑤ Travel anywhere in country

⇒ ⑥ Reside anywhere

⇒ ⑦ choose any occupation

article 14-18 → for Equality
 19-22 → for Freedom
 23-30 → for Right to Life & Liberty

③ Right against exploitation (23, 24)

article 23 — human trafficking / forced labour
 article 24 — right to work in hazardous work

④ Right to Freedom of Religion (25, 26)

→ Freedom of conscience & religion → connection with god

→ Freedom of religious affairs

→ Freedom from paying tax on religious property

→ Freedom to buy & maintain movable & immovable property

→ Freedom from attending religious instruction

⑤ Cultural & Educational Rights → 29 & 30

⑥ Right to Constitutional Remedies 32-35

→ Rights are protected by this

31 - Right to Life & Liberty

Fundamental Duties.

Swarn-Singh Committee -

Chapter on Citizen's Duties → Russia → Sov - - -
1946 48th am - F. Duty, IV, Section,

→ ~~Sw~~

Swarn Singh Committee

51A

↓ recommended

Fundamental Duties

↓

42nd Amendment 1976.

↓
Part IV-A

↓
Source - Soviet Constitution (Russia)

↓
Chapter on the Citizen's Duties.

Directive Principles of State Policy

* The inclusion of directive principles of state policy in our constitution is a unique feature of a constitution

Source -

It is based on the principles of social policy given in the constitution of Ireland for the inspiration for the inclusion of directive principles of state policy came from the concept of welfare state.

* The ~~the~~ directive principles of state policy are included in Part IV of a constitution

* This includes total 16 articles that is articles 36 to 51

2nd chapter

① 42nd amendment → secular

② aims & objectives of constitution are included → Preamble

③ Fundamental right - IV

④ Union of states - constitutional

⑤ 12 schedules - present, 395 articles

characteristic of constitution is
right to property - 44 amn

and characteristics of fundamental rights

citizenship ship act - 1955

Right to property

Right to property is not a fundamental right.

Single citizenship - India.

Fraternity → spirit of brotherhood,

which of the following objectives are the preamble does not have, not protect

Meaning of Directive Principles of state

Policy

The directive principles of state policy contain in our constitution are the aims and objectives to be achieved by the central and state government in the governance of the country

Nature of directive principles of state

policy

* The directive principles are the ideals which are to be implemented by the future govt of the country

* They are the positive directions or instructions to be followed for running the govt and formulating law.

* They aim at establishing social and economic democracy

* They are the foundation of the welfare state.

* As they are the ideals they cannot be implemented at once, they have to be implemented in the one stage.

* They are the foundation of the welfare state.

3rd

* As they are the ideals they cannot be implemented at once, they have to be implemented in the one stage.

* They are the foundation of the welfare state.

* As they are the ideals they cannot be implemented at once, they have to be implemented in the one stage.

* They are not justiciable that is they are not legally enforceable. Course of law the govt cannot be compared by the course to implement them.

Objectives behind directive principle of state Policy

- * To set out the direction or instruction to be implemented by the state to bring out economic democracy
- * To set standards of achievements before the legislature and the executive by which they are successful or failure can be judged.
- * To see that the failure to implement the directive principles gives the govt a rude shock at the elections.

Significance of Directive principles of state

Policy

- * They serve as standing reminder to the union and state govt to make law and formulate policy in accordance with the spirit of directive principle
- * They clearly laid down that of equals goal is achieving economic democracy
- * The possible conflict b/w the rights of the individually and the needs of the community or society here sought to be resolved by place in restrictions on the fundamental rights themselves on the one hand and by incorporating the directive principles in the constitution on the other
- * Directive principles are not rigid.
- * Article 31 of our constitution declares that the directive principles are fundamental in the governance of the country and it is the duty of the state to apply the directive principle of making law that means the directive principles are not just moral precept but a possibility to be of mind.

- * Directive principle constitute an operative part of the constitution in the sense that it is through the directive principles that the constitution tries to achieve the ideal of a democratic welfare state set out in the preamble of constitution.
- * Even the judiciary hails back of upon the directive principle by interpreting the law as the directive principles aim at common welfare and laid down the basic objectives for which the state exist.
- * The directive principles are relevant to consider what are the reasonable restrictions under article - 19 on fundamental rights.
- * The importance of directive principles increases greatly after some amendments were made in our constitution. In 1971 and 1976 they clearly indicate the intention of the legislature to give ^{weightage} to these directives over the fundamental rights.

Difference between fundamental rights & Directive principles of state policy (DPSP)

- ① Fundamental Rights are justiciable that is legally enforceable whereas DPSP are not justiciable.
- ② Fundamental Rights are self enforceable but DPSP can be implemented only if there is a legislation to carry out the DPSP.
- ③ Fundamental Rights are concerned with the rights of the people and they are limitation upon state action that is they ~~restrict~~ restrict the state from interfering with the lives of law abiding citizen where as DPSP are instructions to the state to do certain things and achieve certain goals.
- ④ Fundamental Rights are mainly concerned with civil liberties where as DPSP aims at the establishment of social justice.
- ⑤ Fundamental Rights provide political freedom and aims at political democracy. whereas DPSP aims at establishing socio-economic democracy and economic development.

⑥ Fundamental Rights are finite but DPSP are not finite.

⑦ The DPSP have to perform as given a subsidiary to the fundamental rights.

⑧ Spoke of fundamental right is limited where as the spoke of DPSP is wide.

⑨ In the case of any conflict (right) b/w fundamental rights & DPSP the fundamental rights would prevail.

⑩ For the implementation of DPSP it may become necessary to respect certain fundamental rights of the individual

ex: nationalisation of banks & reforms removal of right to property etc.

The judiciary also upheld such actions of the state. again since the very idea of DPSP is welfare of the people the DPSP have supremacy over fundamental rights.

⑪ Various DPSP's are

Various DPSP's are

① Regulation of state in connection with DPSP

② obligation or promise of the state to apply DPSP in making law

③ obligation to provide livelihood

④ equal justice and prelegal aid to economically weaker classes

⑤ Organisation of Village Panchayat

⑥ employment, education & public assistance to all citizens

⑦ rest and human condition of work and maternity relief for women workers

⑧ living wage for workers (salary for daily workers)

⑨ participation of workers in management of industries

⑩ Uniform civil code

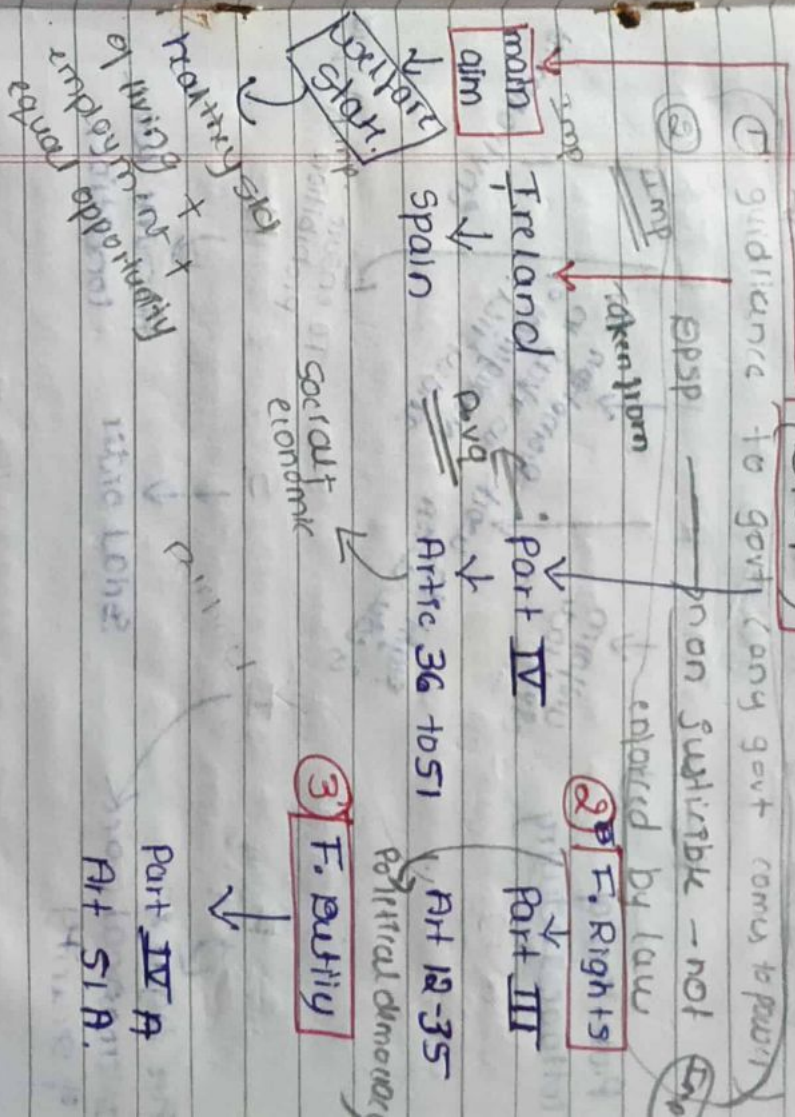
⑪ free & compulsory education for children

⑫ Promotion of educational & economic interest of weaker sections

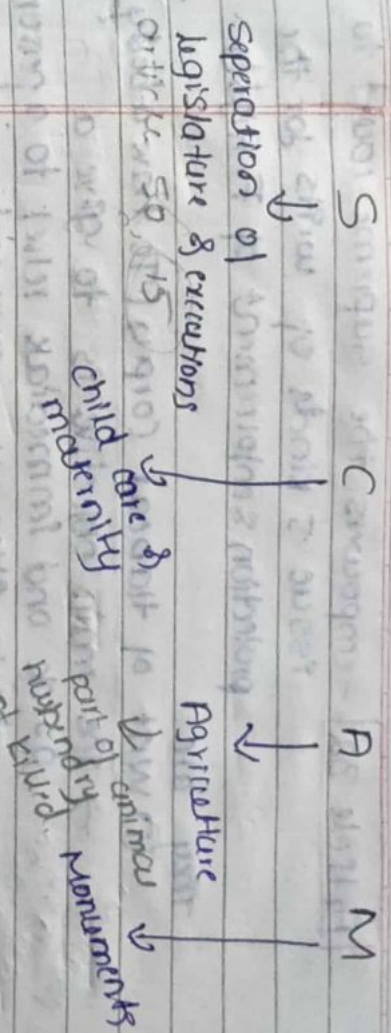
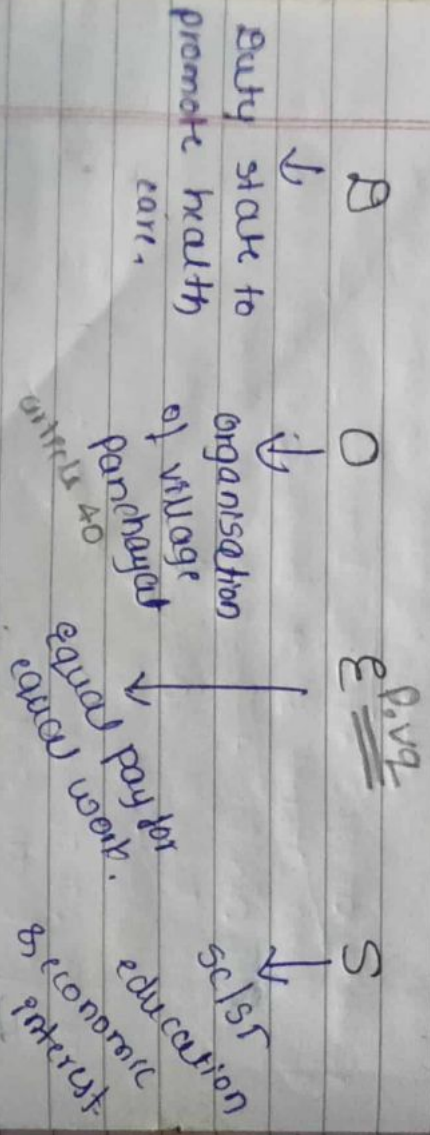
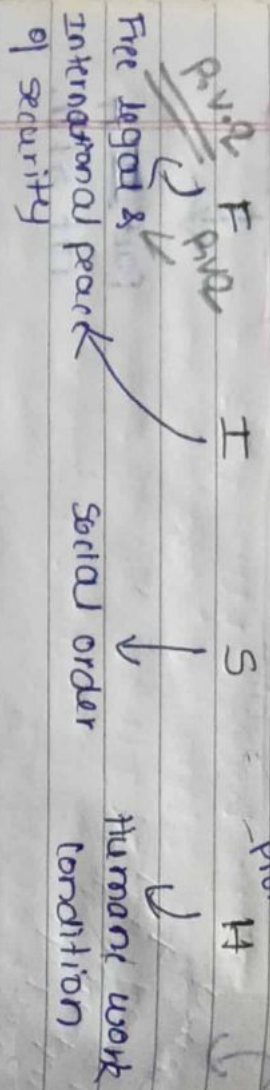
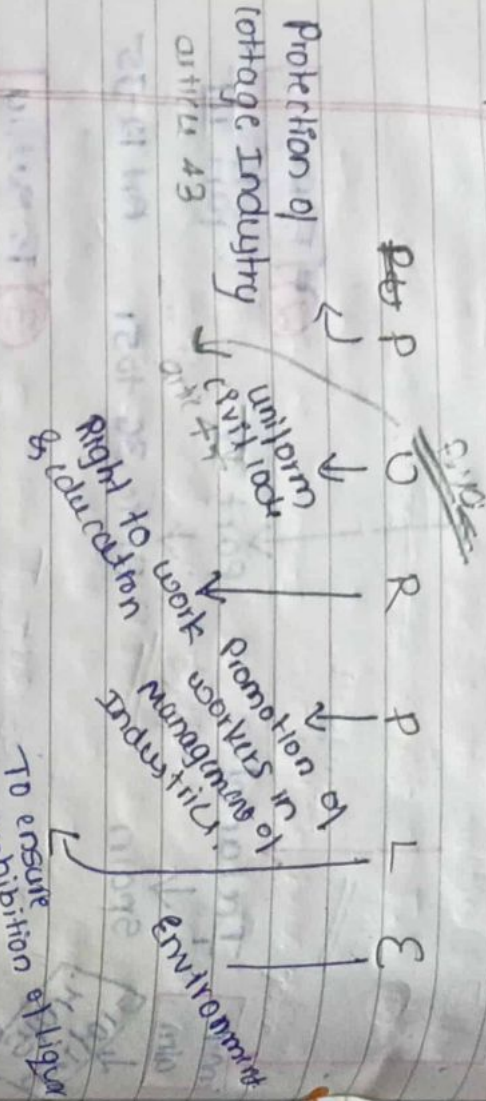
⑬ Raising the level of nutrition & standard of living & improvement of public health

- (14) organisation of agriculture and animal husbandry on modern & scientific lines
- (15) Protection & improvement of environment & safe guarding of forest and wild life
- (16) Protection of monuments & places and places & objects of national importance
- (17) Separation of Judiciary from executive
- (18) Promotion of International Peace & Security

① Directive Principle of ~~Sentate~~ Policy



PURPLE FISH DOES SCAM



collaboratory for training
 of hand & order privatisation
 of school bus plus childing a do
 play and singing

Article 32

-empowers the Supreme Court to issue 5 kinds of writs for the protection & enforcement of F. Rights

They are

1. Writ of Habeas Corpus (To have a body)
→ The main objective is to give a quick and immediate relief to a person who is illegally arrested.
not apply for crim.

2. Writ of Mandamus (use order)

→ It is generally issued against public authority who is bound to do a public duty but refuses to perform his duty

3. Writ of Prohibition

→ It is issued by the Supreme Court or the high court to a lower court not to do what is not within its jurisdiction

4. Writ of Certiorari (To be more fully informed of)

→ It is issued by a superior

court (Higher court) to a inferior court (lower court) requiring the later to submit the record of a case pending before it. (Specially Justice.)

5. Writ of quo warrant (By judicial authority)

→ The objective is to terminate a person from the office, which he is not legally entitled to hold.

6. Person who is issued by S. Court without required qualification

7. within term by the superior court not to proceed with

P.V.Q.

NAME	
DATE	/ /

① The final interpreter of the Indian Constitution

- a) President
- b) State
- c) Parliament
- d) Supreme court ✓

② The constituent Assembly was setup according to

- a) Wavell plan
- b) cabinet mission plan
- c) Cripps mission plan
- d) Simon commission
- b) cabinet mission

③ Who was the constitutional Advisor to the constituent Assembly

- a) T.T. Krishnamachary
- b) B.N. Rao ✓
- c) M.N. Roy
- d) K.M. Munshi
- b) B.N. Rao (also prepared first draft)

④ Which is the historic date in the constitutional history of India

- a) 26th Jan 1950 ✓
- b) 26th Nov 1949
- c) 15th Aug 1947
- d) 8 Aug 1942

⑤ F. Rights can be suspended

- a) By the Parliament
- b) By the Supreme court
- c) Prime minister
- d) P

⑥ Untouchability is associated with

- a) Political
- b) Economic
- c) Religious
- d) Social ✓

⑦ Which of the following rights abolish discrimination

- a) Right to equality ✓
- b) Right against exploitation
- c) Freedom of religion
- d) Cultural & Educational rights
- a) Right to equality

8) DPSP are the direction to people of

- a) People of India
- b) State ✓
- c) President
- d) Prime minister

9) DPSP are

- a) Justiciable
- b) Sometimes Justiciable
- c) Non-Justiciable ✓
- d) All of the above

10) Implementation of DPSP depends on

- a) Requires of the state
- b) Will of the state ✓
- c) Population of people
- d) Judicial decision

b) Will of state ✓

11) Promotion of international peace & security is

- a) Fundamental Duty
- b) DPSP ✓
- c) Objective of Preamble
- d) Function of govt

b) DPSP.

12) Which one of the following DPSP is based on Gandhian ideology

- a) Compulsory education for all children up to the age of 14 years
- b) Prohibition of consumption of intoxicants (alcohol)
- c) Establishment of Village Panchayat ✓
- d) Development of weaker section

c) Establishment of village

13) Which article of the constitution guarantees the right to life & personal liberty

- a) article 20
- b) article 19
- c) article 21 ✓
- d) article 22

c) article 21

14) Constitution determining

- a) nature & form of state.
- b) Organisation of powers & function of the 3 organs of govt
- c) Frt R. & Duties of citizens
- d) All of the above ✓

d) All of the above ✓

15) The rule which governs the state is constitution who said 919

- a) Aristotle
- b) K.C. Wheare
- c) Mac Iver ✓
- d) Finer

16) How many committees are set up by the constituent assembly?

- a) 18
- b) 22 ✓
- c) 20
- d) 19
- e) ~~22~~ 22 ✓

17) The constitution of India presently consist of — schedule

- a) ~~18~~ 8
- b) ~~12~~ 12 ✓
- c) 14
- d) 15

18) Who was the provisional chairman of constituent assembly temporary chairman

- a) Mahatma Gandhi
- b) Dr. B.R. Ambedkar
- c) Sachidanand Sinha ✓
- d) K.M. Munshi

19) Who describe the Preamble of the constitution as Political Horoscope?

- a) M.V. Kamath
- b) Dr. B.R. Ambedkar
- c) K.M. Munshi ✓
- d) Dr. Rajendra Prasad

20) Article 4 of the Indian constitution declares that

- a) India shall be union of states ✓
- b) Federal state
- c) Unitary state
- d) Quasi (Partially) Federal state

21) India shall be union of states

- a) Hindustan
- b) Bharat
- c) Union of states ✓
- d) All of the above

22) Which article of the Indian constitution deals with the procedure of amending the constitution

- a) article 368 ✓
- b) article 365
- c) article 352
- d) article 368

23

Constitution of India is largely from.

- a) USA constitution
- b) Canada constitution
- c) Govt. of India act of 1935 ✓
- d) Ireland constitution
- e) Govt. of

24

In which year the first amendment of constitution of India was made

- a) 1950
- b) 1976
- c) 1951 ✓
- d) 1962
- e) 1951

25

Equal Pay for equal work is

- a) F-Right
- b) DPSP ✓
- c) Preamble
- d) none of the above

26

Which of the following is not a DPSP

- a) Prohibition of state slaughter & killing of cow (cow)
- b) Equal Justice for all legal
- c) Equal pay for equal work for both men & women
- d) Removal of untouchability ✓

27

In which year constituent assembly convened (started)

- 1940
- 1947
- 1946 ✓
- 1950

28

First session of constituent assembly was held on

- a) Dec 11 1946
- b) Dec 9 1946 ✓
- c) Aug 19 1947
- d) Oct 26 1946

29

Cabinet mission plan

- a) 1946 ✓
- b) 1947
- c) 1935
- d) 1927

30

In which year secular word was added to the Preamble of constitution

- a) 1940
- b) 1976 ✓
- c) 1978
- d) 1981

31

Who was the chairman of drafting committee?

- a) Nehru
- b) Gandhi
- c) Patel
- d) Ambedkar ✓

32) Objective of the constitution can be seen in

- a) Preamble ✓
- b) Emergency powers
- c) Legislature
- d) P.S.P.

33) Article 14 of the Indian constitution deals with

- a) Equality before law ✓
- b) Ban of Practice of untouchability
- c) Ban of awards
- d) Equal opportunity

34) Which article of the constitution bans the practice of untouchability

- a) Article 14
- b) Article 15
- c) Article 16
- d) Article 17 ✓

35) Which article of the constitution bans the abiding titles

- a) Article 16
- b) 17
- c) Article 18 ✓
- d) 19

36) Which article of the constitution deals with fundamental liberty

- a) 18
- b) 19 ✓
- c) 20
- d) 21

37) Article — deals with life and individual liberty

- a) 19
- b) 20
- c) 21 ✓
- d) 22

38) Who is the guardian of F. Rights.

- a) Supreme court ✓
- b) Parliament
- c) Governor
- d) President

39) Who said article 32 is the soul of Indian constitution

- a) Nehru
- b) Gandhi
- c) Ambedkar ✓
- d) none of the above

40) F. Rights are borrowed from which consl

- a) China
- b) Britain
- c) Ireland
- d) America ✓

NAME: _____
DATE: ____/____/____

37) which article deals with right to constitutional remedy

- a) 32 ✓
b) 42
c) 44
d) 51

38) which article deals with right to freedom of religion

- a) 19-22
b) 14-18
c) 23-24
d) 25-28 ✓

39) In which year 86th amendment was implemented?

- a) 1945
b) 1919
c) 2002 ✓
d) 2020

40) In 86th amendment was implemented

- a) related to
b) Free & compulsory education ✓
c) state govt
d) central government
e) none of the above

41) who is the head of state

- a) speaker
b) Prime Minister
c) President ✓
d) Chief min

42) which article deals with amendment of the Indian constitution?

- a) ~~233~~ 350
b) 360
c) 300
d) 368 ✓

43) How many F. Duties are notified in the constitution?

- a) 10
b) 11 ✓
c) 14
d) 15

44) The word socialist was added in our Preamble by — amendment

- a) 44
b) 46
c) 42 ✓
d) 41

45) who is the first citizen of India?

- a) speaker
b) governor
c) President ✓
d) vice president

44) constitution means

- a) F. law of the nation ✓
- b) F. law of govt.
- c) E. to Judiciary
- d) government

45) Modern states are generally considered

- a) Police state
- b) welfare state ✓
- c) dictatorial state
- d) none of these.

46) how much time the constituent assembly took to finalise Indian Constitution

- a) 1 year & month 14 days
- b) 3 years
- c) 2 year 11 months 18 days ✓
- d) 2 year

47) The Constitution declared India as

- a) Federal
- b) unitary
- c) Union of states ✓
- d) all of above

48) The preamble of Indian Cons has been amended

- a) once ✓
- b) twice
- c) three
- d) four

49) Republic means

- a) Reflection
- b) sovereignty
- c) Public opinion
- d) The head of the state must be an elected ✓

50) F. Rights are called

- a) justiciable rights ✓
- b) non-justiciable
- c) legal rights
- d) moral rights

51) Aim of DPSP

- a) Capitalist society
- b) welfare state ✓
- c) Protect rights of citizen
- d) communist state

52) Part IV of the Indian Constitution deals with

- a) citizenship
- b) F. Rights
- c) DPSP ✓
- d) central state relation

53) Under whose leadership the interim government was formed

- a) Jawaharlal Nehru ✓
- b) Sardar Patel
- c) Rajendra Prasad
- d) Rajgopalcharya

Q54 From the constitution of Irish we have borrowed the scheme of

- a) PPS ✓
- b) F. Rights
- c) Supreme court
- d) F. Judiciary

Q55 article 44 refers to

- a) Prohibition drinks
- b) Primary education
- c) Village Panchayat
- d) common civil code ✓

Q56 right to religion is one of the

- a) labour rights
- b) economic rights
- c) political rights
- d) F. Rights ✓

Q57 Parliament can amend the constitution with _____ majority

- a) simple majority
- b) $3/4^{th}$ majority
- c) $2/3$ majority ✓
- d) all of above

Q58 who has right to amend constitution Parliament

Q59 the Parliamentary system of government in India is based on the pattern of

- a) America
- b) France
- c) England ✓ (British)
- d) Canada

Q60 Who was the temporary chairman of the constituent assembly? (Provisional chairman)

- a) Dr. B.R. Ambedkar
- b) Jauharlal Nehru
- c) Sachidanand Sinha ✓
- d) B.R. Rajindran Prasad

Q61 Article 32 of the constitution of India is described as

- a) Crown
- b) Soul ✓
- c) Brain
- d) Prestige

Q62 where the sovereignty resides in India? a) supreme court b) Parliament c) ~~people~~ people ✓

Q63 Article _____ is defined as the guardian of F. Rights of the citizens of India

- a) article 52
- b) article 32 ✓
- c) article 42
- d) article 22

NAME: _____
DATE: / /

70) is described as the mirror of the constitution of India

- a) 1909 act b) 1919 act
c) 1935 government of India act ✓ d) 1944 govt of India act

71) In which year 11th fundamental duty added & implemented into the constitution of India

- a) 2000 b) 2002 ✓, 86th amend
c) 2004 d) 2002
2002 - education to child

72) which part of the constitution contain Gandhian Principle (GSP)

- a) Part I b) Part II
c) Part III ✓ d) Part IV ✓
under GSP

73) which is the writ issued to produce the detained person before the court

- a) ~~mandamus~~ b) Habeas corpus ✓
c) Prohibition d) C. Mariano.

74) Promotion of International Peace & Security is

- a) F₂ right b) F₁ duty
a directive principle ✓ d) None of these

75) 79) The constitution of India provides for the system of government

- a) military b) Presidential
c) Parliamentary ✓ d) None of these

76) 80) The concept of the Panchayat Raj was advocated by

- a) Jawahar Lal Nehru b) Sardar Patel
c) Indira Gandhi d) Gandhiji ✓

77) 81) Who among the following was not a member of constituent assembly

- a) Mahatma Gandhi ✓ b) N. Gopalswami
c) Sardar Patel d) all of the above

78) 82) The opening word of the Preamble is

- a) We the members b) We the President
c) We the people ✓ d) none of these

83) which right abolish trafficking human beings & force labour

- a) Right to equality b) Right to religion
c) Right against exploitation ✓ d) Right to religion

84) which of the following right is not named as Fundamental right

- a) Right of liberty b) Right to equality
c) Right to strike ✓ d) Right to religion

81) The ruler which govern the state is constitution who said it

- a) Ferner b) Aristotle
c) Mac Iver ✓ d) Lord Brice.

82) Which of the following has the power of Judicial review

- a) District court b) High court
c) Supreme court ✓ d) none of these

83) who was named as the architect of Indian constitution

- Gandhi Rajendra Prasad
Nehru B. Ambedkar ✓

84) constitution is the "soul of the state" who said it

- a) Plato ✓ b) Aristotle
c) Socrates d) Gattne

85) The constituent assembly was set up in 1946 according to the _____ mission

- a) Carpps. b) Simen commission
c) Cabinet mission ✓ d) Nehru report

86) Originally how many party are there in Indian constitution.

- a) 20 party b) 22 party ✓
c) 21 party d) 23 party.

87) How many articles are there in the beginning of our constitution.

- 360 370
385 395 ✓

88) constituent determines

- a) nature & form of state c) organisation, power & functions of the organs of govt
b) Right & Duties of citizen d) all of the above ✓

89 The constitution of India consists of _____ schedules

- a) 4
- b) 12 ✓
- c) 14
- d) 20

90 The President of India is _____ head.

- a) legal
- b) ceremonial ✓
- c) customing
- d) non customing

91 In which year 1st amendment to the constitution of India was made?

- a) 1950
- b) 1976
- c) 1951 ✓
- d) 1962

92 The diarchy system was introduced by British government under _____ act

- a) 1909
- b) 1919 ✓
- c) 1935
- d) 1947

93 Important feature of Federal system is _____

- a) strong center
- b) centralisation of power
- c) decentralisation of power plus state & central ✓
- d) none of the above

94 Which part of I.C deals with deals with citizenship

- a) part I
- b) part II ✓
- c) part III
- d) part IV

95 The power of judicial _____ is with the _____

- a) Supreme court ✓
- b) Parliament
- c) high court
- d) none of these

NAME : _____
DATE : / /

Quick Recap of all 3 units (last minute preparation)

Meaning of constitution

- Fundamental law
- Supreme law of land
- To form of establishment of govt
- Foundation for political system
- defines powers of central & state govt
- regulates relationship b/w state & people by assting rights & duty of citizen

Nature

- constitution established main organ of state legislature executive & judiciary

Systematically documented constitution

unitary - Switzerland

- longest written constitution in a world
- present 470 articles 12 schedules 25 parts 395 art 19, 22 parts
- Supreme law of land
- Democratic - 25
- partly rigid & partly flexible
- Federal Unitary
- Parliamentary → Prime Minister, Cabinet
- FR & Part IV
- DPSP

first secretary of India - Lord Stanbury

Importance of constitution

- written constitution has many advantages
- written constitution is a single document

Meaning of constitution

Unit 1

- fundamental law
- supreme law of land
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- 1949

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Importance of constitution

→ written constitution has
importance of constitution as a single document

Indian Constitutional development.

1857

1st time Indian against British

Act of 1858 Government of India Act

1858 Government of India Act

end of East India company
power to British crown
they appointed

Viceroy (Governor General of India)

Secretary of India along with

Indian Council Act of 1861

Indians entered as non official members for first time in

Legislative Council established in Provincial Assemblies

Indian Council Act of 1892

Indirect election
chosen by British
power to ask for debate on budget.

Foundation of Indian National Congress (INC)

Indian Council Act of 1909

Morley Minto reform

Direct elections by Legislative Council
Legislative Council members
Imperial Legislative Council

Communal representation

1st time indirect executive

Council of Viceroy

appointed to the Viceroy Council
→ Satyendra Prasad Sinha

Government of India Act 1919

Montagu Chelmsford reform

Transfer → aggr, health, revenue → defence, foreign affairs

Public Service Commission established for first time.

Bicameralism introduced. Dyarchy (Dual Govt) out of 6 members → 3 Indians

Government of India Act of 1935

Federal structure divided the power.

Different Provincial

Separate electorates for muslim, hindu.

Priority status inclusion

Burma separation (Ayazman)

deposed by Congress demanding Punjab

Least as constituent measure introduced by British.

result of multiple round table conference.

and report by Syme

out of 11, Bismarckism introduced in C.

Powers divided into

Provincial list

Provincial list concurrent list.

Removal of diarchy → Provincial autonomy introduced

Establishment of Federal Court

reserve bank of India.

Cripps mission 1942

→ Drafting constitution by an elected constituent assembly after 2nd world war

• All parties rejected.

Cabinet mission 1946

→ Indian states & British province combine to form Union of India

rejected (creation of Pak. partition)

• Constituent assembly with 389 members

(Cabinet mission failed British didn't want to give political rights to Indians)

• 14 members from major political parties from Indian governments

• until constitution formed India under government of India act of 1935

Mount batten plan / Indian Independence act of 1947

→ British India

partition into India

& Pak, on 14th Aug 15

1st Govt → Mount batten

Muslim League - Muhammad Ali Jinnah

Pakistan born in blood & tears

1st British India became Mount batten Govt of India (British)

Cabinet Mission - 1946

• Indian states & British provinces combine to form Union of India

• Plan rejected • After 2nd world war the demand for independent Pakistan, independence.

- Cabinet mission - scheme of ministers.

• Objective - Speedy start process of constitution

• Until constitution made India under act of Govt of India act of 1935

direct election

22 committees

number of provincial legislative assembly (L.A.)

Indirect election

Constituent Assembly 9th Dec 1946

• composed for drafting & adopting constitution • chosen by indirect election by P.L.A

total membership 389

389 original membership

First meeting → 9th Dec 1946

Chairman - Dr. B. R. Ambedkar

President → Dr. Rajendra Prasad

1st P.M. Motilal Nehru

389 membership.

1 partition → under plan of Jun 3 1947

↓
Fresh election

↓
membership reduced to 299

↓
Drafting committee
29th August 1947

→ had 7 members
including chairmanship President

↓
first draft prepared
by B.N Row
Feb 1948

↓
2 years 11 months 18 days

← discuss draft
and took

↓
26th Nov 1949

← completed
adopted
approved

↓
284 members
actually present
on 26th Nov 1949

→ gave their signature.

→ gave their signature.

↓
26th January
1950

→ gave their signature.

→ gave their signature.

↓
originally had

↓
22 parts

395 articles

9 schedules

↓
25 parts

470 articles

12 schedules

↓
current

national
congress
declared
26th Jan 1950
as independent
day

Dr. B.R. Ambedkar
appointed as chairman — August 29 1947.

② Champion of 1. Rights

③ Part-3 of Indian

constitution guarantee F. Rights

④ quality in society → Parliamentary system

⑤ Preamble highlight → Principles of

parliamentary

democracy

⑥ real contribution → protective discrimination

reservation policy

⑦ Part-3 & Part-4 → condition of SC, ST & OBC.

CONSTITUTIONAL PHILOSOPHY AND ITS VALUES

Preamble

→ starting page of constitution / summary starts with 'We the people of India'

Indicatively — source of the constitution
status — basic objective sought to be achieved by constitution

Indicatively — nature of state constitution seek to establish

aims & objectives of constitution

India should be sovereign... (personality)

IN OUR CONSTITUTIONAL ASSEMBLY

26 day of November 1949 DO HERE BY ADOPT

CONSTITUTION

elements of

Preamble

① Sovereign

:- No body control us / independent / absolute

independence / not control

by any other. Internal or

external / India emerging

Independent state /

in formation of internal &

external policy India

guided by national integrity

not by external pressure

real independence.

2) Constitution is a proof

of Sovereignty of country

② Democratic

③ Liberty

④ Equality

⑤ Fraternity

⑥ Socialism

⑦ Secular

⑧ Republic

⑨ Sovereign

Dr. B.R. Ambedkar
appointed as chairman — August 29 1947.

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constitution guarantee F. Rights

④ quality in society → Parliamentary system

⑤ Preamble highlight → Principles of parliamentary democracy

⑥ Real contribution → Protective discrimination reservation policy

⑦ Part-3 & Part-4 → Condition of SC, ST & OBC.

CONSTITUTIONAL PHILOSOPHY AND ITS VALUES

Preamble

→ starting page of constitution / summary starts with 'We the people of India'

Unit 2

Purpose

Indicatively - source of the constitution
status - basic objective sought to be achieved by constitution
indicatively - nature of state constitution seek to establish

India should be sovereign...
IN OUR CONSTITUTIONAL ASSEMBLY
26 day of November 1949 DO HERE BY ADOPT
THIS CONSTITUTION

elements of Preamble

① Sovereign

elements of Preamble

② Justice

③ Liberty

④ Equality

⑤ Fraternity

⑥ Sovereign
⑦ Socialist
⑧ Secular
⑨ Democratic
⑩ Republic

② Constitution is a process of Sovereignty of country

No body control us / independent / absolute independence / not control by any other. Internal or external / India using independent state / In formation of internal & external policy India guided by national integrity not by external pressure real independence.

elements of
Preamble

② SOCIALIST

:-) reducing gap b/w rich and poor (minimist)

⑧ 1976, 42nd amendment incorporated socialist & secular

③ removal of inequality providing basic necessity

④ removal of socio economic imbalance providing massive justice.

⑤ equal pay for equal work

③ SECULAR

① No national religion/

no support to any religion/

neither religious nor irreligious

not support any particular

religion out of public fund

freedom of liberty of faith & worship

1976, 42nd amendment

④ DEMOCRATIC

① By the people of the people for the people

② The last line of Preamble says DO HERE BY ADOR INACT AND GIVE TO OURSELVES THIS CONSTITUTION

③ According to this line democracy known as

→ Government of the people by the people for the people.

④ Power comes from People.

⑤ Introduce Universal Adult Franchise (right to vote)

⑤ REPUBLIC

① No hereditary ruler. / king/queen.

② Preamble declares India as Republic

③ main head of the state is President
constitution made India as republic.

6 JUSTICE

Political

- 1) One man one vote
- 2) Every 5 year member of legislature elected
- 3) Every citizen of entire adult population by vote

Economical

- 1) No discrimination on the basis of income status, plus men & women
- 2) Equitable distribution of wealth
- 3) End of monopolistic control over means of production & distribution
- 4) Decentralisation of economic resources
- 5) Securing adequate opportunities to all.

Social

- 1) No discrimination on the basis of caste or religion
- 2) Abolition of social & economic privileges of privileged class
- 3) Elimination of all forms of exploitation from society

NAME: _____
DATE: ____/____/____

elements of preamble

1 LIBERTY

- 1) Kind of freedom / no unwarranted restriction on thought, faith, worship.
- 2) Progress of individual

2 EQUALITY

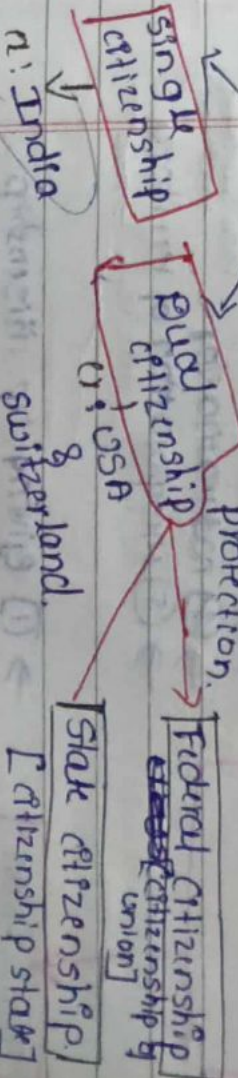
- 1) All are equal
- 2) Equality status & opportunity
- 3) Enforcement of right

3 FRATERNITY

- 1) All religions together with the feeling of brotherhood
- 2) Children of the same soil and the same motherland.

II Citizenship

- 1) Legal relationship between person & state where the person gives loyalty & security giving protection.



- 1) Citizenship signifies power & membership.

- 2) Provides Right to vote

- 3) Right to contest in election

Fundamental Rights

citizenship at commencement of constitution

- ① born in territory of India
- ② either of whose parents first born in territory of India.

- ③ residence of territory of India for not less than 5 years after commencement

citizenship act of 1955

the act made provision for acquisition & termination of citizenship.

acquisition of citizenship

- ① by birth
- ② descent (ancestors)
- ③ registration
- ④ naturalisation (non Indian)
- ⑤ incorporation of territory

Termination of citizenship

- ① giving up citizenship
- ② acquisition of citizenship of other country
- ③ common - by marrying foreigner
- ④ by order of government
- ⑤ absent for long period in non India

Features of Indian Constitution

① longest, written constitution

- avoid misunderstanding
- 395 articles, 12 schedules, 87 amendments

Reason for long constitution

- ① administrative details along with fundamental principle
- ② rules for both centre & state
- ③ SC, ST → discussed problem

② Preamble

③ sovereign, socialist secular, Democratic Republic

④ Establishment of Federal

Polity

distribution of power among states & centre

Federal

unitary

central state

supreme court public service exam emergency

Article 1 - says India that is Bharat

Should be union of states & centre by dispute solved by supreme court

Supreme law of land → constitution

NAME: _____
DATE: 1/1/20

Constitutional law →

Article 21, Article 22, Article 23

Article 24

Article 25, Article 26, Article 27, Article 28

Article 29, Article 30, Article 31

Article 32, Article 33, Article 34

Article 35, Article 36, Article 37

Article 38, Article 39, Article 40

Article 41, Article 42, Article 43

Article 44, Article 45, Article 46

Article 47, Article 48, Article 49

Article 50, Article 51, Article 52

Article 53, Article 54, Article 55

Article 56, Article 57, Article 58

Article 59, Article 60, Article 61

Article 62, Article 63, Article 64

Article 65, Article 66, Article 67

Article 68, Article 69, Article 70

Article 71, Article 72, Article 73

Article 74, Article 75, Article 76

Article 77, Article 78, Article 79

Article 80, Article 81, Article 82

NAME: _____
DATE: 1/1/20

Unit - 3 CONSTITUTIONAL RIGHTS & DUTIES

Imported by law
Fundamental Rights (Political Liberty)

→ basic rights, to lead decent & respectable life, fullest development of human personality

Part III
 12-35 article
 US constitution
 Bill of rights

- significance
- control unwarranted actions
 - life of people meaningful
 - removal of oppressed people
 - functioning of democracy [Political democracy]

Supreme court - protector of F.R.
 High court - protector of F.R.

Classification of F. Rights

Initially 7 rights Now (6)
 7th right → Right to property

12-45 article
 removed - 44 amendment
 1976

- 12-13 article to establish for establishment of state & supreme court (court)
- ① Right to equality (14-18 article)
 - ② Right to freedom (19-22)
 - ③ Right against exploitation (23-24)
 - ④ Right of freedom of religion (25-28)
 - ⑤ cultural & educational (29-30)
 - ⑥ Right to constitutional (32-35) remedy

Right to equality
 14-18

- ① equality before law - 14 article
- ② Prohibition discrimination - 15 article
- ③ equal opportunity - 16 article
- ④ abolition of untouchability - 17 article
- ⑤ abolition of titles - 18 article

Right to freedom
 19-22 article

- ① freedom of speech & expression
- ② assemble peacefully without harm
- ③ form association & union
- ④ move freely throughout India
- ⑤ reside & settle throughout India

article 20 conviction for offence
 21 protection of life, personal liberty
 22 protection against arrest & detention

Right against exploitation
 23-24

23 → Human trafficking
 24 → Employment below age 14 in dangerous operation

Right to Freedom of religion
25-28
article

→ concept of secularism
→ no state religion
→ equal respect & protection for all religion
→ no one discriminated on basis of religion

→ just equal freedom of religion
→ manage religious affairs, (etc.)
payments of tax for promotion of religion (27)

Cultural & Educational rights
29-30

29 article 29(1) → right to preserve language, script, culture

29 (2) → no discrimination on the basis of language, culture, religion, caste.

30 article 30(1) → right to establish minority educational institution

30(2) → aid from the state fund for minority institute

Right to constitutional remedy
32-35
article

→ 'Soul of constitution' & that heart & soul of constitution said by Ambedkar.

article 32 → right to move to highest court of the land 'Supreme court' for enforcement of Rights

article 25 → religious freedom practice.

26 → manage religious affairs

27 → Payment of tax for promotion of religion

28 → Freedom no religious instruction provided in educational institution by state funds.

Constitutional remedy 32-35
article 32

① writ of Habeas Corpus

5 kinds of writs

by Supreme Court

article 32 → right to move to highest court for enforcement of Rights

FUNDAMENTAL DUTIES

सिद्धान्त

42nd amendment - 1976

source → Russia, Soviet

IV A
11 F. Duty

recommendation Swarn Singh committee
→ chapter on the citizens duties

→ reminder for citizens
SI article.

→ 1 report national flag & anthem

2 Follow ideas of freedom rights

3 protect India's sovereignty, unity & integrity

4 defend country

5 Promote harmony & brotherhood

6 Preserve our culture

7 protect environment

8 develop scientific temper & spirit of inquiry.

9 safeguard public property

10 strive for excellence

11 Forank provide education to their children below 14

11th F. Right added in 2002 86th amend

reminder

warning against burning

destroying public property
national flag